

24STCV04998 24STCV04998

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Adilene Gomez v. Kia America Inc.

Plaintiff's Ex Parte Application to continue the trial for 90 to 120 days is DENIED.

This case was filed in February 2024. California Rules of Court, rule 3.1332(a), makes clear that trial dates are firm and continuances are disfavored.

Rule 3.1332(c) identifies the circumstances under which a court may grant a continuance. Plaintiff has not established any of those grounds. The application was filed only two days before the Final Status Conference, and only after the Court set an Order to Show Cause re Sanctions based on Plaintiff's failure to comply with the Court's trial readiness requirements.

Plaintiff principally relies on counsel's failure to timely conduct expert discovery. That is not, standing alone, a basis for continuing trial where the record does not demonstrate diligence. As the Court of Appeal recently explained:

"The absence of a reasonable justification meant allowing this tardy [expert] witness to testify was an abuse of discretion. Of course, some late designations can have valid justifications. Long-designated experts may suddenly become unavailable: death, illness, incapacitation, and other serious and uncontrollable events can create an understandable need for replacements. The world's supply of unexpected and unfortunate events is varied and unlimited. McDonald, however, offered no reasonable justification. There was no emergency or serious unexpected development." (McDonald v. Zargaryan (2025) 117 Cal.App.5th 344, 352.)

Here, Plaintiff has not demonstrated diligence in litigating this matter. The application does not explain Plaintiff's failure to comply with Los Angeles County Superior Court Local Rule 3.25(f)(2), which requires motions in limine and other trial preparation motions to be filed with sufficient statutory notice to be heard at the Final Status Conference. (LASC Local Rule 3.25(f)(2).) Nor does Plaintiff address compliance with the remaining trial readiness requirements set forth in Local Rule 3.25 or this Department's Trial Readiness Policies.

This is not a case in which a diligent party encountered a single, unforeseen event that disrupted an otherwise trial-ready case. Rather, the record reflects a broader failure to prepare for trial in accordance with the California Rules of Court, the Los Angeles County Superior Court Local Rules, and this Department's Trial Readiness Policies.

Accordingly, the Final Status Conference and the Order to Show Cause Re Sanctions remain on calendar. All pretrial deadlines remain in effect and will not be continued. The Court intends to continue the trial date, but only a date in August which the Court and parties will discuss at the FSC. The parties are expected to appear in person, as required for the Final Status Conference. The Court expects declarations from both Plaintiff's counsel and Defendant's counsel addressing the Order to Show Cause Re Sanctions for failure to comply with the Los Angeles Superior Court's Local Rules and trial

readiness requirements.

Plaintiff to give notice.